

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION TO ESTABLISH UNIFORM PROCEDURES, FEES, COSTS, AND CHARGES FOR INSPECTING, COPYING, AND PRODUCING PUBLIC RECORDS."

WHEREAS, it is in the best interest of the City of Cheyenne to establish a uniform procedure for its departments and workforce, including a delineation of fees, costs, and charges for inspecting, copying, and producing public records; and

WHEREAS, the Wyoming Public Records Act, Wyoming Statutes §§ 16-4-201 through 16-4-205, provides authority and sets forth procedures for the City to follow with regard to responding to requests for public records; and

WHEREAS, Wyoming Statute § 16-4-204(c) requires any fees or charges assessed by a custodian of public records to "first be authorized by duly enacted or adopted statute, rule, resolution, ordinance, executive order or other like authority"; and

WHEREAS, the following definitions, procedures and fees shall apply when City staff receives and responds to requests for public records:

1. Definitions.

- a. **"Applicant"** is the person requesting the public records.
- b. **"Clerical/support staff"** are employees who generally perform office or administrative support duties. Clerical/support staff employees include secretaries and administrative assistants.
- c. **"Custodian"** means the authorized City staff having personal custody and control of the public records in question.
- d. **"Electronic/digital public record"** is a public record that is primarily or solely stored in an electronic/digital format. Typically, the custodian will only be able to produce a copy of the original electronic/digital public record due to the native format, security, and integrity of the original data or electronic record.
- e. **"Information technology staff"** are employees who perform duties relating to retrieving, compiling, constructing, formatting, or extracting electronic public records located on computer systems, software, servers, or networks. Information technology staff may also perform computer programming or other computer services relating to electronic public records.
- f. **"Professional staff"** are employees who are not clerical/support or information technology staff as defined herein. Professional staff employees perform administrative, managerial, or professional duties.
- g. **"Supervised copying"** occurs if someone other than the custodian is allowed to make copies, printouts, or photographs.

2. Request for Public Records.

- a. A request for public records shall be submitted in writing by the applicant either on forms provided by the custodian or in a written format that contains sufficient information for the custodian to determine the completeness of the information being request. A request may also be submitted via electronic communication (*i.e.* e-mail) or facsimile transmission.
- b. The custodian shall acknowledge in writing receipt of the request within seven (7) business days of the request.

3. Electronic/Digital Public Records.

a. Production and Construction Costs. Pursuant to Wyoming Statute § 16-4-202(d)(i), the custodian shall charge an applicant the reasonable costs of producing and constructing a copy of an electronic public record for inspection and copying. This cost may include, but is not limited to, the time spent retrieving, compiling, sorting, reviewing, redacting, formatting, converting, or copying the electronic public record, as well as activities required to create or construct a new electronic public record from existing data sources and all associated programming and computer services.

b. Production and Construction Costs. Production and construction costs for electronic public records shall be as follows:

- i. \$20.50/hour for clerical staff time.
- ii. \$34.00/hour for information technology staff time.
- iii. \$50.00/hour for professional staff time.
- iv. Actual cost of programming and computer services.

c. Payment. The custodian shall provide the applicant with an estimate of the reasonable costs of production and construction of the electronic public records. The applicant shall pre-pay the estimated costs before the custodian produces or constructs the electronic public records or provides any copies for inspection. Payment shall be made to the custodian. If the final cost of producing and constructing the record exceed the original estimate, the custodian shall notify the applicant and seek additional payment.

d. Refund. If the actual costs of producing or constructing the electronic public record is less than the amount estimated and paid, the custodian shall refund the excess payment at the same time the applicant is allowed to inspect or retrieve the electronic/digital public records.

e. Inspection. The custodian shall notify the applicant in writing when copies of the electronic public records are produced and available for inspection. The applicant shall have one month from the time the custodian provides notification to inspect the records at the custodian's designated location. After the one-month time period, the request shall be officially closed.

f. Costs for Producing Copies. If the applicant also requests printed copies of the electronic public record, the fee schedule set forth in Section 4 shall also apply.

4. Non-Electronic/Digital Public Records.

a. Inspection. The custodian shall notify the applicant in writing when copies of the non-electronic/digital public records are produced and available for inspection. The applicant shall have one month from the time the custodian provides notification to come to the custodian's designated location to inspect the records. After the one-month time period, the request shall be officially closed.

b. Fees for Copying Non-Electronic/Digital Public Records. An applicant may obtain a paper copy of a non-electronic/digital public record upon payment as follows:

- | | | |
|------|--|-------------|
| i. | Standard (8.5" x 11") – Black and White Copy | \$0.10/page |
| ii. | Standard (8.5" x 11") – Colored Copy | \$0.60/page |
| iii. | Legal (8.5" x 14") – Black and White Copy | \$0.25/page |
| iv. | Legal (8.5" x 14") – Colored Copy | \$1.00/page |
| v. | Ledger (11" x 17") – Black and White Copy | \$0.50/page |

vi.	Ledger (11" x 17") – Colored Copy	\$2.00/page
vii.	24" x 36" – Black and White Copy	\$1.00/page
viii.	24" x 36" – Colored Copy	\$2.50/page
ix.	Other sheet size	Actual Cost
x.	Photograph	Actual Cost
xi.	Utilization of an outside vendor for copying	Actual Cost
xii.	Custodian's fee for supervised copying	See section 3(b)
xiii.	Special instances, <i>i.e.</i> , film	Actual Cost

c. Payment. The custodian shall provide the applicant with an estimate of the reasonable costs of production and construction of the electronic public records. The applicant shall pre-pay the estimated costs before the custodian reproduces the public records. Payment shall be made to the custodian. If the final cost of producing and constructing the record exceed the original estimate, the custodian shall notify the applicant and seek additional payment.

d. Refund. If the actual costs of reproducing the public record is less than the amount estimated and paid, the custodian shall refund the excess payment at the same time the applicant retrieves the public records.

e. Costs for Producing Electronic Copies. An applicant may obtain an electronic copy of a non-electronic public record upon payment as follows:

i.	Payment for staff time, see Section 3 above; and	
ii.	Scanning non-electronic public records for e-mail or facsimile transmission	\$0.10/page
iii.	Electronic Media (disk, thumb drive, etc.)	Actual Cost

f. Fees for Transmitting Public Records. The custodian may charge the following fees for transmitting non-electronic/digital public records:

i.	Shipping fee and cost of the shipping container	Actual Cost
----	---	-------------

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne adopts this Resolution for the purpose of establishing a uniform procedure for its departments and workforce, and the delineation of fees, costs and charges for inspecting, copying, and producing public records; and

BE IT HEREBY FURTHER RESOLVED, that nothing in this Resolution shall be construed as authorizing a fee to be charged as a condition of making a public record available for public inspection.

PRESENTED, READ AND ADOPTED on this _____ day of _____, 2018.

Marian J. Orr, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk